

the deed, yet if, by arrangement between him and the debtor, an estate is vested in a trustee for securing the debt, he can enforce the trust (*d*). Even where a debtor entered into an arrangement with three of his creditors, and in pursuance thereof, by a deed between himself of the first part, the three creditors of the second part, and his other creditors of the third part, conveyed all his real and personal estate to the three creditors, in trust for themselves and the other creditors, it was held that the intention was to make the creditors *cestuis que trust*, and that the deed was irrevocable; and no distinction was taken between the three creditors and the other creditors, although the latter apparently had not been in communication with the debtor previous to the deed, and had not executed it until some time afterwards (*e*).

* 2. **Revocable trusts.**—On the other hand, if a [*516] debtor, without communication with his creditors, and, indeed, only from motives of personal convenience, as on going abroad (*a*), vests an estate in trustees upon trust to pay his debts, the trustees are mere *mandatories*, and the deed confers no right upon the creditors who are neither parties nor privies, and the debtor may at any time, at his pleasure, revoke or vary the trusts, or call for the re-transfer of the property (*b*). And if two persons have different interests in the same estate, and they, by arrangement between themselves, but without communication with any creditor, convey the property to trustees, upon trust to pay the debts of either party: here, though each may enforce the trust as against the other, yet the deed is revocable by both, and the creditor, as he neither required the security, nor was an object of bounty, cannot, while the deed remains revocable, compel the execution of the trust in his own

(*d*) Wilding v. Richards, 1 Coll. 661.

(*e*) Mackinnon v. Stewart, 1 Sim. N. S. 76.

(*a*) Cornthwaite v. Frith, 4 De G. & Sm. 552.

(*b*) Walwyn v. Coutts, 3 Sim. 14; 3 Mer. 707; Smith v. Keating, 6 C.

B. 136; Acton v. Woodgate, 2 M. & K. 492; Henriques v. Bensusan, 20 W. R. 350; Browne v. Cavendish, 1 Jon. & Lat. 606; [Johns v. James, 8 Ch. D. 744; Re Sanders' Trusts, 47 L. J. N. S. Ch. 667;] and Synnot v. Simpson, 5 H. L. Cas. 121.